

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN COLOMBIA

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Colombia, grounded in the constitutional, participation, and environmental-licensing system and documented campaigns

This guide uses the Colombian legal terms you will actually encounter (acción de tutela, acción popular, consulta previa, licencia ambiental, and so on), each defined on first use and in the Glossary. It describes the national framework; departments and municipalities, and the regional environmental authorities, have their own rules — check locally.

A note on terms. Important terms are shown in **bold** the first time they appear, and each is defined in the **Glossary at the end** of this guide.

A note on safety. Colombia is, by international monitoring, the most dangerous country in the world for people who defend land and the environment. This is not an abstract risk. Please read the safety guidance in Section 9 **before** you organise or act.

TABLE OF CONTENTS

1. INTRODUCTION & FRAMEWORK — Why this matters, how this works, what to realistically expect

2. HOW THE SYSTEM WORKS — Who decides, how a decision is made, and the words you'll need

3. QUICK REFERENCE: SUCCESS RATES — Effectiveness by step and combined, with real-world grounding

4. STEP 1: TARGET IDENTIFICATION — What you're fighting, who decides, when the decision is final

5. STEP 2: DOCUMENTATION — How to prove harm (three documentation layers)

6. STEP 3: BUILDING LOCAL OPPOSITION — How to organise (Foundation → Public Launch → Coalition → Escalation)

7. STEP 4: LEGAL CHALLENGES — Using the tutela, the collective action, and consultation

8. STEP 5: MEDIA STRATEGY — How to generate coverage (journalist relationships, newsworthiness, measurement)

9. EMAILS & LETTERS — Ready-to-use messages communities can copy and send

10. WHEN THE SYSTEM IS TILTED — When opposition faces systemic barriers (honest mechanics and assessment)

11. WHEN IT'S ACTUAL CORRUPTION — Spotting, documenting, and exposing genuine misconduct

12. INTEGRATION & TIMELINE — How all five steps work together over a 12-month campaign

13. FINAL ASSESSMENT — Realistic outcomes, when to continue, when to reassess

14. GLOSSARY — Key terms, defined and listed alphabetically

INTRODUCTION & FRAMEWORK

Why This Matters

Community action directly determines project outcomes in Colombia. Projects that clear every political and commercial hurdle still fall when opposition is organised, documented, and legally sharp. In 2017, the farming community of **Cajamarca**, in Tolima, faced one of the world's largest proposed gold mines — and used a **popular consultation (consulta popular)** to vote it down, with about 98% saying no; the company suspended the project. Across the country, communities, ethnic peoples, and campaigners using the **acción de tutela**, the **collective action (acción popular)**, **prior consultation (consulta previa)**, and Colombia's remarkable **rights-of-nature** rulings have forced projects to be refused, suspended, redesigned, or abandoned. These outcomes were not inevitable; communities made them happen.

But most communities don't know HOW to make opposition effective. They attend one hearing, then give up. They assume "the authority will refuse it" without building public pressure, filing the right legal action, or invoking their right to consultation. They generate coverage without a strategy. They organise people and then lose them to burnout — or to fear — after a few months.

This guide shows what actually works — in the Colombian system. It also takes seriously that, in Colombia, this work can be dangerous (Section 9).

The Strategic Framework

Successful opposition campaigns follow the same basic pattern:

STEP 1: TARGET IDENTIFICATION

↓

STEP 2: DOCUMENTATION (proof of harm)

↓

STEP 3: LOCAL OPPOSITION BUILD (organised community)

↓

STEP 4: LEGAL CHALLENGES (tutela / collective action)

↓

STEP 5: MEDIA STRATEGY (public visibility)

These operate SIMULTANEOUSLY (not sequentially)

Each step amplifies the others

Multi-tactic pressure compounds toward victory

Why the legal step matters so much here: Colombia gives communities an unusually rich set of levers. The **acción de tutela** is a fast, accessible constitutional action — anyone can file it, and a judge must decide it quickly — to protect fundamental rights, including the right to a healthy environment; it is the tool that produced Colombia's world-famous **rights-of-nature** rulings, in which courts have recognised the **Atrato River**, the **Amazon**, and other ecosystems as **subjects of rights**. The **collective action (acción popular)** protects collective rights like the environment. **Prior consultation (consulta previa)** must take place before a project affects an **Indigenous or Afro-Colombian** community. And a **licencia ambiental** rests on an environmental study whose defects are a route to court. No Colombian campaign should be planned without understanding these. (One honest caveat: after Cajamarca, the Constitutional Court limited how far a **popular consultation** can block mining on its own — so get current advice; the other levers remain strong.)

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Before you invest time, money, and emotional energy, understand this:

First, a definition. This guide calls it a **system tilted toward approval** (sometimes called *institutional bias*). It does not mean anything illegal. It means the bodies that decide on a project lean toward approving it — because the nation owns the subsoil and depends on mining and oil royalties, because departments and municipalities want investment, or because the developer's own consultants prepare the study.

When these factors are present, opposition becomes harder. It does not become impossible. It becomes slower and more expensive and has a lower chance of stopping a project outright — but it still routinely wins suspensions, conditions, redesigns, and delay. Where there is genuine misconduct — bribery, an undisclosed conflict of interest, the offences the anti-corruption bodies handle — that is a different and more serious problem, covered in Section 11.

This is covered in Sections 10 and 11. Read them — and read Section 9 on safety — before committing resources.

HOW THE SYSTEM WORKS: WHO DECIDES, AND HOW

If you've never dealt with how projects get approved, read this section first. It explains, in plain terms, who holds power over a development in Colombia, how a decision gets made, why the money so often points toward "yes," and the handful of words you'll need. Every term is defined here on first use. The rest of the guide assumes you know this map.

The levels of government — and what each one controls

Colombia is a unitary republic with three levels of government and a strong system of regional environmental authorities.

- **National government** — the **Ministry of Environment (Ministerio de Ambiente y Desarrollo Sostenible)** sets policy; the **National Environmental Licensing Authority (ANLA)** evaluates and grants the **environmental licence (licencia ambiental)** for large or strategic projects (mining, oil and gas, big infrastructure); the **National Mining Agency (ANM)** grants mining concessions; and the sector agencies handle hydrocarbons and energy.
- **Regional environmental authorities (CARs — Corporaciones Autónomas Regionales)** — grant environmental licences and permits for many projects and manage regional resources; the departments (gobernaciones) sit alongside them.
- **Municipalities (municipios)** — control **land-use planning (the POT — Plan de Ordenamiento Territorial)** and local matters.

So which body decides *your* project?

- A mine, oil or gas project, dam, power line, or major road → an **environmental licence** based on an **environmental study (EIA)**, from **ANLA** (national) or the **CAR** (regional) depending on the project; plus a mining concession from the **ANM** for mining.

- Anything affecting an **Indigenous, Afro-Colombian, Raizal, or Rom community** → their **prior consultation (consulta previa)**, under the Constitution and **ILO Convention 169**.

- Anything in a **páramo** (high-altitude wetland), a protected area, or a collective territory → the special, stricter rules that apply (mining in páramos is banned).

The expert and decision bodies

- **ANLA and the CARs** — evaluate the environmental study and decide the licence.
- **The Ministry of Environment** and independent experts — set policy and assess effects.

- **The courts (including the Constitutional Court and the Council of State), and the oversight bodies** — the accountability bodies (see the overseers, below, and Section 11).

How a decision is actually made — the licence journey

For a project that may affect the environment, the developer must obtain an **environmental licence (licencia ambiental)** based on an **environmental impact study (EIA)**. The process runs roughly:

1. **Study and application** — the developer files the **EIA** with **ANLA** or the **CAR**.
2. **Participation** — any community, or a group of citizens, can **request a public environmental hearing (audiencia pública ambiental)** to put concerns and evidence on the record; where an ethnic community is affected, a **prior consultation** must take place.
3. **Evaluation** — the authority evaluates the impacts, alternatives, and mitigation.
4. **Decision** — the authority **grants, conditions, or denies** the licence.

Where an **ethnic community** is affected, a genuine **prior consultation** is required. A **defective EIA, a skipped or flawed public hearing, a missing prior consultation, or harm to a páramo or protected area** are among the strongest grounds to stop or delay a project — and the route to the courts.

The rulebook — the laws that decide the outcome

- **The 1991 Constitution** — often called the "**Ecological Constitution**": the right to a **healthy environment** and to participate in decisions affecting it (Article 79); the state's duty to plan the use of natural resources (Article 80); the **acción de tutela** (Article 86); the **collective actions (acciones populares)** (Article 88); the **right to petition (derecho de petición)** (Article 23); and the rights of **ethnic communities**, including consultation.
- **Law 99 of 1993** — the framework environmental law (the environmental licence and the national environmental system, SINA).
- **ILO Convention 169** (Law 21 of 1991) — **prior consultation**.
- **The páramo protection** (mining banned in páramos) and the **precautionary principle**.
- **The Escazú Agreement** — access to information, participation, justice, and protection of defenders — which Colombia has ratified.
- **The Transparency and Access to Information Law (Law 1712 of 2014)** — the right to information.

Follow the money — why the system often leans toward "yes"

- **The nation owns the subsoil**, and mining and oil **royalties (regalías)** fund the national and regional budgets — so there is strong central pressure to license extraction.
- **Departments and municipalities** compete for investment and jobs.
- **Developers** are often large companies, and — importantly — the **environmental study is prepared by the developer's own consultants**, so it tends to read in the project's favour.
- Refusals are relatively rare; most projects that reach a decision are licensed, with conditions.

None of this makes a decision inevitable. It explains why a decision rarely tips your way on its own — it takes organised, evidenced pressure.

The overseers — who watches the decision-makers

- **The Constitutional Court** — reviews **tutelas** (and produced the **rights-of-nature** rulings); the **Council of State (Consejo de Estado)** — the top administrative court, which hears **collective actions** and challenges to licences.
- **The oversight bodies** — the **Procuraduría** (disciplinary control of officials), the **Contraloría** (fiscal control), and the **Fiscalía** (criminal prosecution) (see Section 11).
- **The Ombudsman (Defensoría del Pueblo)** — human rights and defender protection.
- **ANLA** — which can also review and revoke licences.

QUICK REFERENCE: SUCCESS RATES BY STEP & COMBINATION

These ranges describe the general effectiveness of each tactic drawn from documented opposition campaigns. They are patterns, not guarantees. In Colombia, the variable most likely to push a campaign above these ranges is a well-founded challenge on a real defect — a defective **EIA**, a missing **prior consultation**, or harm to a **páramo** or a water source — carried through the **acción de tutela** or the **collective action** (Step 4).

Individual Step Success Rates

Step	Success Rate	Timeline	Cost (COP)	What "Success" Means
Documentation Only	5-10%	3-4 months	COP\$150 million	Project slowed, public awareness only
Opposition Only	15-20%	6-12 months	COP\$400 million	Public pressure, minor modifications
Legal Only	20-30%	12-24 months	COP\$0-250 million	Slow; strong if the defect is real
Media Only	10-15%	3-6 months	COP\$150 million	Public knows, but no action

Media Only	10-15 %	3-6 months	COP\$150 million	Public knows, but no action
Docs + Opposition	25-35%	12 months	COP\$500 million	Slowed, some modifications
Docs + Legal	30-40%	12-18 months	COP\$600 million	Stronger legal arguments
Opposition + Legal	35-45%	12-18 months	COP\$750 million	Political pressure strengthens the case
Opposition + Media	30-40%	9-12 months	COP\$500 million	Visibility creates political pressure
All 5 Steps Combined	60-75%	12-24 months	COP\$900 million	Licence suspended/refused/modified or project shelved

Key insight: All five steps together = 3-4x more effective than any single step.

A note on legal cost: the acción de tutela and the right to petition are free and need no lawyer, and public-interest organisations (such as Tierra Digna, Dejusticia, and CENSAT) and university legal clinics take these cases, often at no charge — so the "Legal" figures are not a hard floor. The main cost is expert evidence.

Effectiveness Visualization



One important point: a single clear legal defect — most powerfully a missing **prior consultation**, a defective **EIA**, or harm to a **páramo** or a protected water source — can lead a court (through a **tutela** or a **collective action**) to suspend or annul a licence even where the politics favour the project, because it is applying a constitutional standard the authority cannot ignore. (A suspended licence can be re-granted after the defect is addressed — so an early win may need defending, as Cajamarca's community found.)

Step Importance Ranking (When All Combined)

1. OPPOSITION BUILDING (Step 3)

██████████ 25%

Why: creates political pressure, visible to decision-makers, enables other steps
2. DOCUMENTATION (Step 2)

██████████ 22%

Why: provides ammunition for the courts and media; grounds opposition in facts

3. MEDIA STRATEGY (Step 5)  20%

Why: makes opposition/legal/documentation visible, creates political cost

4. LEGAL CHALLENGES (Step 4)  18%

Why: the tutela and collective action can suspend a licence – and hold the consultation and rights-of-nature levers

5. TARGET ID (Step 1)  15%

Why: foundation – if wrong, everything fails

Real insight: a large, organised, visible community that has also put well-argued concerns on the record at the **public hearing** and, as an ethnic community, insisted on genuine **prior consultation**, is far more powerful than perfect documentation or a brilliant legal argument standing alone.

STEP 1: TARGET IDENTIFICATION

Time to complete: Weeks 1-4

Cost: COP\$0

Outcome: A clear picture of what you're fighting, who decides, and when the decision is final

Core Questions You Must Answer

Before you organise a single person, answer these precisely.

Question 1: What Exactly Will Be Destroyed?

Not: "Environmental damage"

But: "The open-pit mine threatens the water basin (cuenca) that supplies [number] families and the farms of [region], and sits above a páramo."

Not: "Pollution"

But: "The project will discharge [X] into the [named] river, over an area of farming and fishing that [community] depends on."

Not: "Community harm"

But: "The project crosses the collective territory of the [Indigenous/Afro-Colombian] community without the **prior consultation** the Constitution requires."

Why this matters: specific harms are easier to document, litigate, and organise around. Vague opposition dies; specific opposition survives. Harm to an **ethnic community's territory**, a **páramo**, a **water source**, or a protected area also opens a **specific legal front** (prior consultation; the páramo ban; the collective action; the tutela).

Question 2: Who Decides?

You cannot pressure an abstraction. Identify the decision-maker precisely — it is usually one of these:

- **ANLA** (national) — for the **environmental licence** of large/strategic projects.
- **The regional CAR** — for the licence of many projects.
- **The ANM** — for the mining concession.
- **The ethnic community** — whose **prior consultation** is required, and the **municipio** for land use.

Write it down concretely: "ANLA will decide the environmental licence after evaluating the EIA. The project affects an Afro-Colombian community's territory, so a prior consultation is required, and it needs a mining concession from the ANM."

Question 3: What Specific Action Stops It?

Not: "Stop the project"

But: "Persuade the authority to deny the licence, or win a suspension through a tutela or collective action" — or, if refusal is unrealistic, "obtain strict conditions, real compensation, and a redesign."

Not: "Protect the environment"

But: "Show the **EIA** is defective, the **prior consultation** was skipped, or a **páramo** or water source is harmed, and file the right action."

Why this matters: you can demand something achievable. Vague demands are easy to ignore; specific ones create measurable pressure and, if the process is unlawful, become the ground for a court to act.

Question 4: When Is the Decision Final?

Timeline tells you how much time you have. Map every date: when the **EIA** is filed, the window to request a **public hearing**, the prior-consultation process, and the licence decision. Don't wait: request the hearing, file **rights-to-petition** for the documents early, and be ready to move — a **tutela** can be filed at any time a fundamental right is threatened, and is decided fast.

Question 5: Are There Documented Financial or Policy Pressures?

- This is the tilted-system assessment question. Know it BEFORE you organise:
- Is the project treated as of **national strategic interest**, or a big source of **royalties**, hardening political backing?
 - Is the **EIA** prepared and paid for by the developer's own consultants only?
 - Does the department or municipio depend on the project for jobs and royalties?
 - Is the developer a large multinational with deep resources for studies, lawyers, and appeals?
 - Is there an armed or criminal interest in the area that raises the danger to organisers (see Section 9)?

Why this matters: if strong strategic/royalty backing or developer-controlled studies are present, opposition must overcome different barriers (Section 10) — and, in Colombia, you must also weigh the **security** situation (Section 9). It doesn't mean opposition can't work — it means realistic expectations and, often, a focus on the **EIA**, the **consultation**, and the **páramo/water** defects, on conditions, and on the **courts**, rather than a straight political refusal.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

- Time to complete:** Months 1-4
Cost: COP\$150-250 million (COP)
Outcome: Three polished reports (30+ pages total) showing specific, quantified harms
- Success Rate (Documentation Alone):** 5-10%
Success Rate (Documentation + Opposition): 25-35%
Success Rate (Documentation + Opposition + Legal + Media): 60-75%

The Three Documentation Layers

Documentation turns vague opposition ("This is bad") into undeniable evidence ("This specific harm will occur to these specific people/places at these specific costs"). Success comes from three layers working together.

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

- What it is:** documentation of existing conditions BEFORE the project begins — including who lives on and uses the land and waters, and how.
- Why it matters:** developers claim "the land is unproductive" or "already degraded." Baseline documentation proves what — and who — was there, and it cannot be reconstructed later.

Documented case — the farmers of Cajamarca and the La Colosa gold mine

A major company proposed one of the world's largest open-pit gold mines at **Cajamarca**, in Tolima — a rich farming region, in a forest reserve, sitting above cloud forests, páramo, and the headwaters of a basin that supplies water to hundreds of thousands of people across several municipalities. Its backers treated it as a world-class gold deposit. The community made that impossible. Organised as the **Environmental and Peasant Committee (Comité Ambiental y Campesino)**, farmers, young people, and researchers documented what was at stake — the water basin, the farmland, the ecosystems — drawing on independent, state, and even company-linked studies showing the harm would outweigh the benefit.

It changed the outcome. In March 2017, Cajamarca held a **popular consultation (consulta popular)** — a binding participation mechanism in the Constitution — and about **98% voted against mining**; the company **suspended the project** on force majeure, and the municipal council enshrined the result. The community's documented case — the water, the farmland, the ecosystems — was what turned public understanding into a decisive vote. (Honesty matters here: the company kept its mining concessions and fought on; the Constitutional Court later **limited** how far a popular consultation can block mining on its own; and organisers faced **death threats**. The win had to be defended for years — and, in Cajamarca, it has largely held.)

Why it matters for you: the Cajamarca community's documentation — of the water basin and the farmland the mine would harm — was decisive. Documenting existing conditions, including who lives there and the water systems they depend on, is the foundation of everything that follows.

Building your own baseline (typical process). Document existing conditions before the project starts, because a developer will claim the land is unproductive and baseline cannot be reconstructed later. A workable approach: surveys across a season cycle of the project area plus reference sites; a species and habitat inventory with GPS locations, flagging anything protected that the developer's **EIA** omitted; a record of who occupies and uses the land — farming, fishing, gathering, sacred sites — and whether it is a **collective ethnic territory** (the basis of a **consultation** right); the **water systems** the community depends on (basins, páramos, rivers — as at Cajamarca); proximity to any páramo or protected area; and water and air baselines. Typical cost is around COP\$150-200 million for a technical consultant/ecologist, GPS, and testing — reducible with knowledgeable community members, university researchers, and naturalists. Dated, same-spot photographs and geo-referenced maps make it credible.

LAYER 2: IMPACT ANALYSIS

What it is: detailed analysis of what specific harms will occur, based on the project description plus your baseline.

Why it matters: it shows not just "something bad" but "specifically THIS BAD in THIS WAY" — and it maps directly onto what the **EIA** must properly assess.

Use the developer's own words and the legal tests. Powerful, documentable weak points in Colombian assessments include:

- **A defective EIA.** The **environmental study** must genuinely assess the project's significant impacts and alternatives. A study that omits or understates impacts — the water basin, as at Cajamarca — is a strong ground.
- **A missing prior consultation.** For an **ethnic community**, a genuine **prior consultation** is required; its absence is one of the strongest grounds, and the Constitutional Court has suspended projects for it.
- **Harm to a páramo or protected area.** **Mining is banned in páramos**, and protected areas and water sources carry strict protection; showing the project touches them is powerful.

Convert each of the developer's admissions ("temporary disturbance," "limited effect") into a quantified prediction against your baseline.

Outcome (illustrative): an **EIA** found defective, a missing **prior consultation**, or harm to a **páramo** can lead a court to suspend or annul the licence — adding months or years, or stopping the project.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

What it is: quantification of the human-health and economic costs to the community.

Why it matters: decision-makers and the public respond to human cost. "X hectares affected" matters less than "an estimated 45 additional respiratory cases a year, and COP\$X of health cost" — or "the farming and water that sustain [number] families destroyed."

Method: use recognised air-quality or water modelling and the public-health literature to translate emissions or land/water loss into health and livelihood outcomes, then attach costs — additional respiratory and gastrointestinal cases, lost farming and fishing income, and total annual and lifetime cost for the affected population.

Outcome (illustrative): an independent health-and-livelihood analysis can move a department or municipio, feed the court case, and force conditions the original design lacked.

How to Structure Your Documentation

Phase 1: Baseline Conditions (Months 1-2)

Engage a technical consultant or ecologist (or use knowledgeable community members, university researchers, and naturalists); document conditions AND human occupation, use, ethnic-territory status, water systems, and sacred sites. **Deliverable:** a 20-30 page baseline report with species/habitat inventory, a record of use and rights, water/air data, dated photographs, and geo-referenced maps.

Phase 2: Impact Analysis (Months 2-3)

Obtain the **EIA** and the licence file (use the **right to petition**); identify specific impacts; test the study against the rules (completeness, public hearing, prior consultation, páramo/water). **Deliverable:** a 20-30 page impact analysis with quantified predicted impacts, comparison to baseline, and the developer's own admissions quoted back.

Phase 3: Health/Economic Analysis (Months 3-4)

Identify affected populations; estimate health and livelihood impacts and costs. **Deliverable:** a 15-20 page report written for the public and press.

Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data.** Documented data beats perfect data that arrives after the licence.
- **Only environmental data.** Add health, livelihood, and human-occupation impacts — the arguments that move decision-makers, the courts, and the public.
- **No independent check.** A report the authority can dismiss as "activist material" is far stronger after an independent expert or a university reviews it.
- **Ignoring the developer's own admissions.** Their **EIA** is your best source; quote it against itself. Use the **right to petition** to get it and the file.

Documentation Budget Breakdown (COP)

Item	Cost	Notes
Technical consultant / ecologist (baseline + species ID)	COP\$110 million	Protected-species and habitat survey
GPS / survey equipment	COP\$10 million	Mapping/documentation

Water/air testing	COP\$25 million	Sampling across seasons
Independent / university expert review	COP\$20 million	Credibility
Printing / petition requests / translation	COP\$8 million	Copies for decision-makers
TOTAL	COP\$173 million	Reducible with university partners and community members

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE COMMUNITIES THAT HOLD

Time to complete: Months 2-6 (foundation), 6-12 (sustained)
Cost: ~COP\$400 million (COP) for a full year
Outcome: 50-100 core people, 5-10 organisations, sustained organisation

Success Rate (Opposition Alone): 15-20%
Success Rate (Opposition + Documentation + Legal + Media): 60-75%

Critical Insight About Organising

Most opposition campaigns fail not because they can't build opposition, but because opposition burns out — or is frightened into silence — after 4-8 months. You need structures that prevent it, and (in Colombia especially) that protect people. Read Section 9 on safety alongside this step.

PHASE 1: FOUNDATION (Months 1-2)

Goal: a core group of 15-20 motivated people and a clear picture of their concerns.

Step 1a: One-to-One Conversations

People don't join movements from pamphlets; they join from relationships. Identify the 15-20 people most affected or interested. **Talk to** each in person for an hour. Ask: "What's your biggest concern about this project?" Listen — don't pitch. Ask what they'd be willing to do. Each person has a different concern (land, water, farming, health, a sacred site, a way of life). Opposition organised around each shared concern is stronger than one generic message.

Step 1b: Affinity Groups by Concern

Organise small groups (3-8 people) around a shared concern, not around "opposition":

- **Land/livelihood group** — farming, fishing, displacement and compensation
- **Water group** — the basins, páramos, rivers, contamination
- **Health group** — air quality, water quality, disease
- **Rights group** — **ethnic territory** and **prior consultation**, sacred sites (led by the community)

Each group meets regularly and works out how opposition serves *their* interest, coordinating while keeping its own framing.

Step 1c: Use the Community's Own Structures and Register a Vehicle

Two things matter. First, Colombian communities have strong structures — the **community action board (Junta de Acción Comunal)**, peasant associations, and, for ethnic peoples, the **cabildo / consejo comunitario** (Indigenous councils / Afro-Colombian community councils) whose authorities carry legal weight and hold the **consultation** right; a clear, recorded community position is one of the strongest things you can produce. Second, a **registered non-profit (corporación or fundación)** can speak for the community, receive donations, and support litigation; partner with established organisations (such as Tierra Digna, Dejusticia, or CENSAT) early.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Goal: announce opposition to the public, the media, and decision-makers.

Step 2a: Public Meeting (community assembly / cabildo abierto)

Hold a community assembly — or a **cabildo abierto** (open town meeting, a formal participation mechanism) — where people set out their concerns to themselves, to the mayor and council, and to press. A serious, informational meeting carries weight. Typical shape: welcome → project explanation → community concerns (each person a few minutes) → expert Q&A (an ecologist, a health voice, a lawyer) → next steps.

Step 2b: Opposition Materials (Factsheets)

One page, in plain Spanish (and the community's language where relevant). Decision-makers and neighbours won't read 30 pages; one page gets read. Structure: a headline stating the problem → quick quantified facts → the specific impact → **what you're asking for** → the evidence base → contact/resources. Print widely; distribute at markets, the town hall, churches, health posts; post a digital version. Cost: ~COP\$8 million.

Step 2c: The Public Hearing, the Prior Consultation, and the Community's Recorded Position (the decisive record)

Two things matter most here. First, **request a public environmental hearing (audiencia pública ambiental)** and turn people out to speak and file written concerns, each raising real grounds — a defective **EIA**, harm to the water basin or a páramo, ignored displacement. Second, secure the **records that carry weight**: a clear, formally recorded **community position**, and — for an ethnic community — an insistence that any **prior consultation** be genuine, with the community's position recorded. (Where the law allows, communities have also pursued a **popular consultation** or a **cabildo abierto** — get current advice on what is available after the recent limits.) Together these build a record the courts take seriously. Cost: ~COP\$5 million.

Step 2d: Media Coverage at Launch

Release data + concerns + the recorded community position = a story. (Full press-release example is in Section 9, 9G.) Contact reporters, then send the study. Expect 1-3 local stories.

PHASE 3: COALITION EXPANSION (Months 3-6)

Goal: grow from 20 core people to 50+ core plus 5-10 organisations.

Step 3a: Organisation Outreach

Approach environmental and rights organisations — **Tierra Digna, Dejusticia, CENSAT Agua Viva**, regional environmental committees, university law and science clinics, ethnic-peoples' organisations (cabildos and consejos comunitarios), peasant associations, the church (which carries real weight in Colombian communities), and businesses that lose from the project. Research each; contact the right person; explain how opposition serves *their* aims; make a specific, tailored ask.

- Tailored asks:
- **Tierra Digna / Dejusticia / a legal clinic:** "We need help preparing a tutela or a collective action, and the prior-consultation strategy — can you assist?"
 - **A university group:** "Would your researchers assess the water basin or health impacts independently?"
 - **A cabildo / consejo comunitario:** "Help us insist on a genuine prior consultation and record the community's position."
 - **Peasant associations / church leaders:** "This takes the land and water we depend on — will you speak and stand with us?"

Step 3b: Coalition Agreements (Written)

A written agreement — who's in, how decisions are made, meeting frequency, the public message, who may speak for the coalition, conflict resolution, money, security protocols, and an exit clause — prevents later conflict. Consensus is stronger but slower; voting is faster but can fracture.

Step 3c: Coordinated Public Work

Assign leadership by strength: environmental analysis to the NGO/university; ethnic territory and consultation to the community and its council; livelihood to the peasant associations; media to whoever has the contacts; the legal track to the law group and the registered non-profit. Sequence activities so each builds momentum (coalition launch → data release → recorded community position → public hearing).

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Goal: maintain organised opposition across a 12+ month timeline — safely.

Step 4a: Public Demonstrations (marches / plantones)

Regular, same time and place, growing attendance — outside the mayor's office, the department, or in the town square. Handle logistics and **safety**: any required notice, marshals, accessibility, a sound system, and a security protocol (Section 9). Momentum matters: "50 gather" becomes "gathering grows to 500."

Step 4b: Media Campaign (Ongoing)

Monthly rhythm: week 1 a release tied to an event/data; weeks 2-3 social media 3x/week; week 4 a reporter check-in. Rotate themes (community position recorded → expert finding → coalition growth → march → tutela filed).

Step 4c: Common Opposition Failure Points (How to Prevent)

Failure Point 1: Burnout and fear (Months 4-8). Prevent burnout: regular (not constant) meetings; celebrate milestones; fund one part-time coordinator; schedule breaks; keep a public progress tracker. And take **fear** seriously — threats are real in Colombia; a shared security protocol, collective decision-making, and links to protection bodies (Section 9) keep people safe and in the fight.

Failure Point 2: Coalition Conflict. Prevent it with a written agreement and decision process, a clear escalation path (discuss → mediator), an explicit exit clause, and rotating leadership. Respect that ethnic communities decide by their own authorities — and be alert to developers trying to split a community by co-opting some leaders or funding "abstention" campaigns; keep decisions transparent

and collective.

Failure Point 3: Competing Funding. Grants with conflicting conditions can pull groups off shared work. Coordinate grants up front and agree no group commits coalition resources without a coalition decision.

Failure Point 4: No Clear Wins. Name milestones as victories (community position recorded, a public hearing held, a large march, the tutela accepted) and publicise cumulative progress.

Opposition Building Budget: Year-Long Campaign (COP)

Item	Cost
Factsheet printing	COP\$14 million
Website/phone/data (annual)	COP\$10 million
Meeting / venue costs	COP\$20 million
Outreach travel (often remote, difficult terrain)	COP\$70 million
Concern/recording materials	COP\$4 million
Demonstration supplies (banners, sound)	COP\$28 million
Coalition meeting costs	COP\$20 million
Part-time coordinator (12 months)	COP\$180 million
Social-media / content (part-time, 3 months)	COP\$45 million
Fundraiser/event / security costs	COP\$25 million
TOTAL	COP\$416 million

Funding the campaign. Money typically comes from four places: individual donations (local collections and online fundraisers, plus dedicated legal-cost appeals); grants from environmental and rights funders (long lead times — apply early); benefit events; and in-kind support from coalition organisations (expertise, meeting space, volunteer time). A registered non-profit can receive donations and, where eligible, grants. Aim to raise half the budget by month 6 and the rest by month 12. **Reductions:** use a volunteer coordinator, or run a shorter 6-month campaign, to cut ~COP\$180 million; and the **tutela** and **right to petition** are free, and organisations like Tierra Digna and Dejusticia often act at no charge.

STEP 4: LEGAL CHALLENGES — THE TUTELA, THE COLLECTIVE ACTION, AND CONSULTATION

Time to complete: the tutela is fast (roughly 10 days at first instance); other routes take 3-24 months

Cost: COP\$0-250 million (COP; the tutela and the right to petition are free and need no lawyer)

Outcome: a licence suspended or refused, a project halted, conditions, or a project shelved

Representation impact:

- Experienced environmental/constitutional lawyers or a public-interest law group: 35-45% favourable-outcome likelihood
- General or less specialised representation: 25-35%
- Self-representation: 5-15%
- **A key advantage:** the **acción de tutela** and the **right to petition** are **free, need no lawyer, and are decided fast**, and public-interest organisations (Tierra Digna, Dejusticia, CENSAT) and university clinics take these cases, often at no charge.

Success Rate (Legal Only): 20-30%

Success Rate (Legal + Opposition + Media): 60-70%

Colombian legal strategy has three tracks, and Colombia's constitutional toolkit is unusually rich and accessible.

TRACK 1: PARTICIPATION AND THE PAPER TRAIL (the front door)

Most fights are shaped here, on the record, before the courts.

- **Use the right to petition (derecho de petición).** This constitutional right lets anyone ask a public authority (or a company performing a public function) for information or action, and get a response within a set time. Use it to obtain the **EIA**, the licence file, and the correspondence — a fast, free, powerful tool.
- **Request the public environmental hearing (audiencia pública ambiental)** and turn people out to put concerns and evidence on the record.
- **Insist on genuine prior consultation.** For an **ethnic community**, put on the record that the **prior consultation** must take place and be genuine (or record its absence).
- **Record the community's position.** A clear, formally recorded **community position** carries weight.

Why this track matters: using the right to petition and the hearing well — specific, on time, grounded in the law and the evidence — plus the recorded community position, often does more than any amount of noise, and it builds the case you'll need for Tracks 2 and 3.

TRACK 2: CONSULTATION, THE EIA, AND RIGHTS OF NATURE (the strongest cards)

Several grounds make this powerful.

- 1. A missing or defective prior consultation.** For an **Indigenous, Afro-Colombian, Raizal, or Rom community**, a genuine **prior consultation (consulta previa)** is required under the Constitution and ILO Convention 169; the Constitutional Court has **suspended and annulled projects** for its absence. This is among the strongest grounds in the country.
- 2. A defective EIA, or harm to a páramo or water source.** The **environmental study** must genuinely assess impacts and alternatives; **mining is banned in páramos**; and water sources and protected areas carry strong protection. Documenting these defects is powerful.
- 3. Rights of nature and biocultural rights.** In a line of world-famous rulings — the **Atrato River (Constitutional Court, 2016)**, the **Amazon (Supreme Court, 2018)**, the Cauca River, and others — Colombian courts have recognised **ecosystems as subjects of rights**, tied to the **biocultural rights** of the ethnic communities who depend on them, and applied the **precautionary principle**. Where a river, forest, or páramo is central to your case, this jurisprudence can be a powerful frame.

TRACK 3: THE TUTELA, THE COLLECTIVE ACTION, AND THE ADMINISTRATIVE COURTS

Match the tool to the goal:

- **The acción de tutela** — a **fast, free** constitutional action, filed before any judge, to protect **fundamental rights** (including the healthy-environment and consultation rights); decided in about ten days, with the **Constitutional Court** selecting cases to review. This is the vehicle that produced the **rights-of-nature** rulings, and the fastest way to protect a right under imminent threat.
- **The collective action (acción popular)** — under Law 472 of 1998, to protect **collective rights** such as the environment and public health, before the administrative courts.
- **The action to annul the licence (acción de nulidad)** — challenging the licence's legality before the administrative courts and the **Council of State**.
- **The action to compel compliance (acción de cumplimiento)** — to force an authority to apply a law or an existing ruling.

Be realistic about two things. First, the **popular consultation** route was **limited** by the Constitutional Court after Cajamarca — a municipality cannot, on its own, ban mining, because the subsoil belongs to the nation — so get **current advice** on what a consultation can and cannot do; the **tutela, collective action, and consultation** levers remain strong. Second, a suspended or annulled licence can be **re-granted** after the defect is addressed, and a company may keep its concessions and fight on — as at **Cajamarca**. So an early win may need defending: keep opposition and media pressure alive alongside the case.

Legal Strategy Decision Tree

START: Is an EIA in review, or a licence issued?

- └ IN REVIEW → Request the public hearing + use the right to petition NOW (Track 1).
 - | Record the community position / insist on prior consultation.
- └ ISSUED → A TUTELA can be filed at any time a fundamental right is under imminent threat, and is decided fast. Consider a collective action too.

Q1: What is the defect?

- └ Missing/defective prior consultation (ethnic community) → TUTELA (strong ground).
- └ Harm to a healthy environment / a fundamental right at imminent risk → TUTELA.
- └ Collective environmental right harmed → COLLECTIVE ACTION (acción popular).
- └ The licence is unlawful → ACTION TO ANNUL before the administrative courts/Council of State.
- └ A river/forest/páramo central to the case → invoke the RIGHTS-OF-NATURE line + the precautionary principle.
- └ No real defect (lawful process, you just disagree) → focus on opposition + media.

Q2: Is a right under imminent threat?

- └ YES → the TUTELA is fast and free – use it, and ask for interim protection (medida provisional) to halt the act meanwhile.

Q3: Budget?

- └ COP\$0 → Tutela / right to petition yourself; partner with Tierra Digna/Dejusticia.
- └ COP\$0-120M → Collective action / annulment with a lawyer + expert evidence.
- └ COP\$120-250M → Full case + expert witnesses, combined with opposition + media.

RECOMMENDED PATHS

Path A – Clear defect: tutela (consultation/environment) or collective action + Track 1 record + petition file + media. Highest ceiling.

Path B – Arguable but not clear-cut: build opposition + media; take advice; litigate if a defect crystallises.

Litigation Success Factors

Litigation succeeds when **combined** with the other steps:

- Litigation alone: 20-30%
- Litigation + opposition: 35-45%
- Litigation + opposition + media: 50-70%
- A clear defect — a missing **prior consultation**, a defective **EIA**, or harm to a **páramo** — can exceed these, though a cured defect may let the project resume.

A court that sees a genuine legal defect, plus visible organised opposition, plus press coverage, treats the matter as serious.

What to Avoid: Legal Failures

- **Litigating instead of organising.** A lone technical point with no visible opposition reads as a niche dispute. Build opposition; litigate with it visible.
- **Overlooking the tutela.** It is fast, free, and powerful for a fundamental right under imminent threat — don't default to slower routes when the tutela fits.
- **Relying only on a popular consultation.** After the Court's limits, it cannot ban mining on its own — pair it with the other levers and get current advice.
- **Weak grounds.** "This project is harmful" is an opinion, not a legal ground. "The licence was granted without the prior consultation the Constitution requires" is a ground a court can act on.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Time to complete: the full 12-month campaign

Cost: ~COP\$150 million (COP) for trained spokespeople + ongoing support

Outcome: regular coverage reaching a large audience, political pressure on decision-makers

Success Rate (Media Only): 10-15%

Success Rate (Media + Opposition + Documentation + Legal): 60-75%

Colombia has a strong national press, a vigorous investigative-journalism sector, and heavy social-media use, that cover exactly these fights — and a record of that coverage shifting outcomes. The Cajamarca vote drew national and international attention, which raised the political cost of ignoring it. (A safety note: journalists covering these conflicts are themselves at risk in Colombia — see Section 9.)

How Journalists Actually Work

What reporters care about, in order: (1) **news** (something new happened), (2) **consequence** (someone is affected), (3) **timeliness** (it's happening now), (4) **conflict** (a real dispute), (5) **new information**. What they don't care about: your opinion, how angry you are, vague statements, or meetings with no hook.

The Newsworthiness Formula

NEWS = DATA + CONSEQUENCE + TIMELINESS + NEW INFORMATION

- **Bad:** "Residents oppose the project." (no data, no specific consequence, nothing new) → ignored.

- **Good:** "Right-to-petition documents show the EIA never assessed the water basin that supplies 300,000 people; the community has filed a tutela; a judge decides within days." → covered.

The difference is roughly a 4-5x change in the likelihood of coverage.

Know the Outlets That Cover This Beat

- **Local and community media** and **regional press** — the audience that reaches your municipal and department officials.
- **National outlets** — *El Espectador*, *El Tiempo*, and *Semana* — for projects with wider significance.
- **Investigative and environmental outlets** — *La Silla Vacía*, *Cuestión Pública*, *Rutas del Conflicto*, *Vorágine*, and **Mongabay Latam** — for deeper reporting on licences, water, and ethnic rights.
- **Social media** — powerful in Colombia — plus international outlets for landmark cases (as at Cajamarca).

Building Reporter Relationships (The Key)

Reporters don't ring campaigners for comment; campaigners ring reporters with tips. Identify 5-10 local, regional, and specialist reporters (environment, mining, ethnic-rights beats). **Contact** them first: "I saw your piece on [similar story]. We've got a similar

situation in [place] and I think your readers should know." Then keep the relationship warm over months — a relevant article, a right-to-petition document, a milestone — so that when the big story lands, they already know you.

Sample Media Timeline

- Month 1: build relationships (contact five reporters)
- Month 2: first story (the public hearing / the recorded community position)
- Month 3: press event releasing the survey/petition findings; expert available
- Month 4: coalition announcement
- Month 5: march coverage
- Month 6: decision-date coverage

Real Media Dynamics (Colombian grounding)

- **Coverage plus mobilisation shifts outcomes:** the Cajamarca fight combined years of community organising, the documentation of the water threat, and the popular consultation with national and international coverage that raised the political cost.
- **Petition documents make stories:** a disclosure that contradicts the developer's claims — an EIA that ignored the water basin, a missing consultation — is a gift to a reporter and a court.
- **Independent evidence beats the developer's study:** independent hydrological, ecological, or health analysis that contradicts an optimistic **EIA** lets the press write "experts dispute the developer's figures," and decision-makers take notice.

Media Measurement

Track cumulative stories and reach month over month. **Success indicators:** regular (at least monthly) coverage that carries your message and specific data, and visible decision-maker response. **Failure indicators:** no coverage for 2+ months, superficial coverage that drops your argument, or no response from decision-makers.

SECTION 8: EMAILS & LETTERS YOU CAN COPY

These are ready-to-use messages. Adapt the bracketed parts and send them. Keep them short, specific, and grounded in the law and the evidence — that is what gets read and acted on. The **right-to-petition request (8E)** and the press release (8G) are among the highest-leverage messages here.

8A. Email to a reporter (story pitch)

Subject: Story tip: [specific finding] – [the authority] decides [date]

Estimado/a [Reporter],

I follow your coverage of [beat / recent story]. We have something in [place] your readers should know about, and there's a clear news hook.

In one line: [right-to-petition documents / the community's recorded position / an independent survey] show [quantified finding – e.g. "the EIA never assessed the water basin that supplies 300,000 people"], and [ANLA / the CAR] decides on [date].

Why it's newsworthy: it's new (just obtained), specific (affects [# people / hectares / an ethnic community]), and time-sensitive (decision [date]).

I can share the full report and the documents and connect you with [one named expert] for an interview. Would a quick call this week work?

Saludos,

[Name] – [Organisation] – [phone] – [email]

8B. Letter to ANLA, the CAR, or the mayor/governor

Subject: [Deny / attach strict conditions to] [project] – environmental licence [ref]

To [ANLA / the Director of the CAR / the Mayor (Alcalde) / the Governor],

I am a resident of [place] writing about the [project], on which a decision (the environmental licence based on the EIA) is expected around [date].

The concern, briefly: [one or two specific grounds – e.g. "the EIA fails to assess the water basin the region depends on, the project sits above a páramo, and the ethnic community was never consulted"].

I am asking you to [specific, achievable action – e.g. "deny the licence," or "require strict conditions, real compensation, and a redesign"].

[If true:] The affected community has recorded its opposition; [#] residents spoke at the public hearing; [#] organisations share the concern.

I would welcome a meeting and can share our full evidence.

Atentamente,
[Name], [address], [phone], [email]

8C. Concern at the public hearing / recorded community position

PART A – WRITTEN CONCERN (public environmental hearing)

To: [ANLA / the CAR], re [project]

Concern regarding the [project]. Hearing held/requested [date].

1. Who I am: [name], [community], [interest].
2. Grounds (with evidence):
 - a. [Prior consultation] – the project affects the [people]; the prior consultation the Constitution and ILO 169 require has not taken place. (Attach.)
 - b. [Defective EIA] – the study omits [impact], understates [impact], and ignores the water basin / páramo documented here.
 - c. [Páramo / water] – the project harms a páramo / the water source of [community].
3. What I ask: that the licence be DENIED; alternatively, [strict conditions and a redesign].

[Name] – [contact] – Attachments: [baseline / impact / health report]

PART B – RECORDED COMMUNITY POSITION (assembly / ethnic authority)

"The [community], through its assembly / its cabildo / its consejo comunitario, records that it OPPOSES the [project] and does not consent to it, for the following reasons: [rights / livelihood / water / sacred sites]. Recorded [date], [who was present / how decided]."

8D. Coalition outreach email (to an organisation)

Subject: [Organisation] + [project] – a specific ask that fits your work

Estimado/a [Name],

I'm [name] with [organisation] in [place]. We're working on [project], which [one-line stake]. I'm getting in touch because this connects directly to [organisation]'s work on [their aim].

We're not asking you to adopt our whole campaign – just one concrete thing that serves your aims: [tailored ask – e.g. "help us prepare a tutela or a collective action," or "help us insist on a genuine prior consultation," or "have your researchers assess the water-basin impacts independently"].

If helpful, I can send a one-page brief and arrange a short call.

Con gratitud,
[Name] – [Organisation] – [contact]

8E. Right-to-petition request (the transparency tool)

To: [ANLA / the CAR / the authority], Attn: the Petitions Office

RIGHT TO PETITION (Derecho de petición – Article 23 of the Constitution) / request under the Transparency and Access to Information Law (Law 1712 of 2014)

Please provide the following concerning [project] (ref [ref]):

1. The environmental impact study (EIA) and the environmental licence (and conditions).
2. The record of the public environmental hearing and the concerns received.
3. For an ethnic community: the prior-consultation record and its certification.
4. For mining: the concession title from the ANM and any páramo/water-source overlap.
5. The correspondence between [the authority] and [the developer], [dates].

Under the right to petition you must respond within the legal timeframe. If any information is refused, please state the legal basis; I reserve the right to insist and to complain.

[Name] – [address] – [date]

8F. Legal challenge — tutela / collective action (fast and free; get current advice)

NOTE: The ACCIÓN DE TUTELA is FREE, needs no lawyer, and is decided in about ten days – use it when a fundamental right (healthy environment, prior consultation) is under imminent threat, and ask for INTERIM PROTECTION (medida provisional) to halt the act meanwhile. For a collective environmental right, use the COLLECTIVE ACTION (acción popular). NOTE the popular-consultation limits after SU-095/2018 – get current advice.

[TUTELA – heading and form as advised; can be handwritten]
[Date]

Petitioner(s): [affected persons / community / ethnic authority], [address].
Against: [ANLA / the CAR / the authority] – for [the act/omission].

1. Fundamental right violated or threatened: [the right to a healthy environment (Art. 79) / to prior consultation / to water], by [the licence [ref] / the failure to consult].
2. Grounds: [missing prior consultation]; [defective EIA]; [harm to a páramo/water source]; [the rights-of-nature line, where a river/forest is central].
3. Relief: protection of the right; SUSPENSION of the act; and INTERIM PROTECTION (medida provisional) while the tutela is decided.

[Name] – [contact]

8G. Press release (effective)

FOR IMMEDIATE RELEASE

[HEADLINE: make it NEWS, not opinion]
[Subtitle: consequence + timeliness]

[DATELINE: Place / Date]

[LEAD – answer “why now?”]
[Local organisation] released [study / right-to-petition documents / the community's recorded position] today showing [specific finding] affecting [# of people / hectares / an ethnic community].

- KEY FINDINGS
- [Quantified impact with citation]
 - [Quantified impact with citation]
 - [Quantified impact with citation]

[DIRECT QUOTE – specific, from a credible voice, not a slogan]
"[What the finding means]," said [Name, Title].

[CONTEXT – why it matters; reference a documented case where relevant]

[DECISION POINT – create urgency]
[ANLA / the CAR / the court] decides on [date].

[CALL TO ACTION] To support or add your concern: [how].
For more: [contact].

CONTACT: [Name / Organisation / Phone / Email]

ATTACHMENTS: full report, right-to-petition documents, the community's recorded position, maps, Q&A

8H. Legal strategy decision tree

See Step 4 for the full decision tree — Tracks 1-3, the tutela, the collective action, prior consultation, the rights-of-nature line, the right to petition, the SU-095 caution, and the budget branches.

SECTION 9: WHEN THE SYSTEM IS TILTED TOWARD APPROVAL (HONEST MECHANICS)

What this means. A system is **tilted toward approval** when the bodies that decide on a project lean, in practice, toward approving it — because the nation owns the subsoil and depends on mining and oil royalties, because departments and municipalities want investment, or because the developer's own consultants prepare the study. It rarely means anyone broke the law. Here is how the tilt works — and how communities win anyway. **In Colombia, this section also carries the most important warning in the guide: the physical danger to defenders.**

Important Caveat

This section describes patterns from documented Colombian dynamics and public policy — royalty-driven pressure, "national strategic interest" designations, developer-funded studies, rarely-refused licences, and the limits placed on popular consultations. It is not a statistical claim about "X% of all decisions." Read it as: "where these patterns appear, here is what happens and what it means for opposition."

What This Tilt DOES (and DOESN'T DO)

DOES: create financial and political incentive to approve (royalties, jobs, investment, "strategic interest"); bias information (the **EIA** is commissioned by the developer, and reads optimistically); advantage well-resourced developers; and — after the Constitutional Court's limits — **narrow** the power of a **popular consultation** to block mining.

DOESN'T: guarantee approval; make opposition impossible; remove the right to **prior consultation**; remove the **tutela**, the **collective action**, or the **rights-of-nature** jurisprudence; or prevent suspensions, conditions, and delay.

The popular-consultation limit, specifically. After Cajamarca, the Constitutional Court held that a municipality cannot, by popular consultation alone, ban mining, because the subsoil belongs to the nation — requiring instead mechanisms of "coordination and concurrence" between national and local authorities. The practical lesson: the consultation is no longer a stand-alone off-switch for mining, so lead with the **EIA, prior consultation, páramo/water**, and **rights-of-nature** grounds, and get current advice.

Analogy: a tilted system is like playing on a pitch sloped against you. It makes winning harder, not impossible — so your strategy has to be sharper and more visible, your legal grounds cleaner, and your information paper trail solid.

Assessment Framework — Determine Your Situation

GREEN FLAG (low tilt): an ordinary licence with genuine scrutiny; no "strategic interest" label; a clear legal defect; ethnic territory, a páramo, or a documented water source engaged. → 65-75% with all 5 steps. Proceed with standard opposition — mindful of safety.

YELLOW FLAG (moderate tilt): a royalty-driven push and a developer-funded **EIA**, but independent evidence is possible and a legal ground (EIA, consultation, páramo) is arguable. → 40-45% with all 5 steps; often win conditions and delay even if not a refusal. Proceed; prioritise the consultation and páramo/water defects.

RED FLAG (high tilt): a project of "national strategic interest," developer-only studies, heavy political backing — and, often, an armed or criminal interest in the territory. → 25-30% to stop; 50-60% to modify/delay. Weigh whether delay/conditions justify the investment **and the risk**; lead with the cleanest ground; build power and a record for the next round.

Direct Action and Defender Safety: The Most Important Warning in This Guide

When licence and legal routes are exhausted, some Colombian communities have used non-violent direct action — marches, blockades, and occupations. This is descriptive of what has occurred, not guidance — and in Colombia it comes with the gravest safety warning in this guide.

Colombia is the most dangerous country in the world for people who defend land and the environment. Independent monitoring recorded it as the **deadliest country on earth for defenders**, with the highest annual death toll ever documented for a single country — **around 79 killings in a single recent year, and over 300 in a decade** — and **Indigenous and Afro-Colombian peoples are killed in numbers far out of proportion to their share of the population**. Even the peaceful, celebrated organisers of the Cajamarca consultation **received death threats**. Armed groups and criminal organisations control many rural areas, and those who resist extractive and land interests face threats, forced displacement, criminalisation, and murder. Journalists covering these conflicts

are also at risk.

This danger must shape everything. Anyone considering organising or direct action — especially over mining, oil, or land in a contested rural area — should treat their safety as the first priority: **never act alone; move and decide collectively; agree a security protocol from the start** (who knows where you are, what to do about threats, how to reduce exposure); keep everything non-violent and well-documented; **connect immediately to protection bodies** — the **Ombudsman (Defensoría del Pueblo)**, the **National Protection Unit (Unidad Nacional de Protección, UNP)**, and defender organisations such as **Somos Defensores** — and to the press, because visibility can be protective; and use the protections of the **Escazú Agreement**, which Colombia has ratified and which specifically obliges the state to prevent and investigate attacks on defenders. **If you are threatened, treat it as an emergency: report it to the Defensoría, the UNP, and the Fiscalía, document it, tell your networks, and seek protection.** No project is worth a life; organise in ways that keep people alive and together.

Honest Assessment

Where the system is tilted, opposition using licence and legal methods has lower odds of an outright stop — but still reliably wins suspensions or conditions, forces delay (often long), imposes political cost, builds durable community power, and creates a record for the courts. And Colombia offers genuine equalisers: the fast, free **tutela**; the **collective action**; the right to **prior consultation**; the world-leading **rights-of-nature** jurisprudence; and the **right to petition**. Neither scenario makes opposition futile — but in Colombia, do it safely.

SECTION 10: WHEN IT'S ACTUAL CORRUPTION (AND HOW TO EXPOSE IT)

Section 9 covered a system **tilted toward approval** — pressures that are usually lawful. This section covers something narrower and more serious: **actual corruption** — the unlawful or unethical use of a public position for private benefit, or improper influence over a decision. It is a real problem in Colombia, and where it exists it is both a wrong worth exposing and, strategically, a project's single greatest vulnerability. Colombia has strong oversight bodies to receive these matters — but handle them carefully, and safely.

What counts as corruption (a spectrum from illegal to merely unethical)

- **Bribery and abuse of office** (offences under the Criminal Code) — money or favours in exchange for a licence or a favourable decision, or a public servant abusing office for gain (Colombia's largest corruption scandals have involved exactly this in infrastructure and contracting).
- **Bought licences or concessions** — a licence, a mining concession, or a páramo/water clearance granted in exchange for a benefit.
- **Undisclosed conflicts of interest** — a decision-maker with a hidden stake (land near the site, an interest in the developer, a family tie) who does not step aside.
- **The revolving door** — officials and the developer's staff or consultants moving between each other.
- **Improper gifts, hospitality, or campaign funding** flowing from a developer to decision-makers — or **funding "abstention" campaigns** to defeat a community consultation, as alleged at Cajamarca.
- **Manipulated studies** — an **EIA** or a consultation "certification" skewed or falsified.
- **Insider land dealing** — acquiring affected land using non-public knowledge of a coming licence.

Red flags to watch for

- A licence granted despite strong objections and expert concerns, with thin or shifting reasons.
- Sudden reversals, rushed timelines, or a licence issued quietly (or re-granted right after a court suspends it).
- An official who did not step aside despite a personal interest.
- Off-record meetings, or money, hospitality, or campaign donations flowing from the developer to decision-makers.
- A decision-maker — or a relative — owning affected land or an interest in the developer.
- A "prior consultation" certified with people who don't represent the community.
- The same small circle of firms, consultants, and officials recurring across licences.
- Right-to-petition requests met with delay or heavy withholding.

How to document and investigate it (follow the money — carefully and safely)

- **Right-to-petition and Law 1712 requests** for correspondence, minutes, contracts, and the licence file.
- **The Comptroller's (Contraloría) reports** on the agency or project.
- **Company and land records** — who owns the affected land and who profits; the company and mining registries (the ANM's cadastre).
- **Campaign-finance and asset records** — check for donations from the developer or unexplained wealth.
- **The consultation certification** — check whether the people "consulted" actually represent the community.
- **Build a timeline:** interest, donation, or meeting → decision. Corruption is almost always shown by **pattern and timing**, not a confession.
- **Whistleblowers** often break these stories — but protect their identities, and remember that in Colombia exposing powerful

interests can be dangerous.

The legal lever: a tainted or arbitrary decision can be undone

Two features make this powerful. First, a licence granted through a process tainted by corruption, an undisclosed conflict, or a falsified consultation can be **annulled by the courts** as unlawful — you do not have to secure a criminal conviction first. Second, the offences can be pursued by the **Fiscalía** (criminal), the **Procuraduría** (disciplinary), and the **Contraloría** (fiscal). So documenting a tainted process can be both a **ground to undo the licence** and a matter for the oversight bodies.

Where to report it

- The **Fiscalía General de la Nación** — for the criminal offences.
- The **Procuraduría General de la Nación** — for disciplinary misconduct by officials.
- The **Contraloría General de la República** — for the misuse of public funds and fiscal harm.
- **Investigative outlets** (such as *La Silla Vacía*, *Cuestión Pública*, and *El Espectador*) — in parallel with the official channels.

Strategy: exposing a tainted process can beat a project

A credible, documented corruption story does several things at once: it triggers an investigation; it can get the licence annulled; it flips media coverage from "local dispute" to "scandal"; it splits the political support behind the project; and it damages the developer's reputation and financing. **Exposing a tainted process is often more powerful than arguing inside it.**

Do this responsibly — and safely

- **Stick to documented facts.** Publish the records and the timeline and let readers draw conclusions; frame anything unproven as a question, not an accusation.
- **Mind defamation and stigmatisation.** Colombia has criminal **defamation** offences (injuria and calumnia), and defenders are frequently **stigmatised** (branded as anti-development or as guerrilla sympathisers) — which is both a legal and a physical danger. Accusing a named person of a crime you cannot prove is risky. Work with a lawyer and an experienced journalist before publishing allegations.
- **Report through the Fiscalía / Procuraduría / Contraloría in parallel** with any media, so there is a formal record and an investigation can follow.
- **Protect whistleblowers and yourself.** The danger is real; keep identities confidential and stay connected to legal, protection, and human-rights networks (Section 9).
- **Don't cry "corruption" without evidence.** Calling ordinary, lawful bias (Section 9) "corruption" destroys your credibility and can expose you to a case. Keep the two separate — which is exactly why they are separate sections here.

INTEGRATION: HOW ALL FIVE STEPS WORK TOGETHER

Realistic 12-Month Campaign Timeline

Months 1-2 — Foundation + Documentation: identify the target and decision-maker (Step 1); begin baseline surveys, map ethnic territory, water systems, and use (Step 2); convene the community and form or partner with a registered non-profit — and **set up a security protocol** (Step 3, Section 9); file first **right-to-petition** requests, request the public hearing, and make first reporter contacts (Steps 4-5). *Outcome:* structure forming, the record and paper trail beginning.

Months 2-3 — Public Launch: baseline complete; community assembly / cabildo abierto + concerns at the public hearing + **recorded community position** (Steps 3-4); media event (Step 5). *Outcome:* opposition visible, concerns and position on the record, 3-5 stories.

Months 3-4 — Coalition + Impact Analysis: complete impact analysis testing the **EIA** (Step 2); expand the coalition and bring in a law group and (on ethnic land) the community's authorities (Step 3); prepare the **tutela / collective action** grounds (Step 4); data-release press event (Step 5). *Outcome:* broad coalition, legal grounds identified, coverage expanding.

Months 4-6 — Expansion + Health Data: health/livelihood report (Step 2); sustained marches (Step 3, safely); the licence decision (Step 4); expert press events (Step 5). *Outcome:* possible refusal or strict conditions, quantified impacts, regional media.

Months 6-9 — Escalation + Litigation: marches escalating, safety maintained (Step 3); file the **tutela** (fast) or the **collective action** (Step 4); ongoing monthly media (Step 5). *Outcome:* sustained pressure, case live, act possibly suspended.

Months 9-12 — Peak Pressure + Positioning: maintain opposition (Step 3); hearing / positioning, and watch for a **re-granted licence** after any suspension (Step 4); media momentum (Step 5). *Outcome:* licence + opposition + media + law compound; suspension, conditions, or the project shelved.

Key Principles (What Separates Winning Campaigns from Losing Ones)

1. **Specificity** — "the EIA never assessed the water basin that supplies 300,000 people," not "we oppose the project."
2. **Multi-tactic pressure** — public hearing + recorded position + consultation + opposition + media + tutela, together.

3. **Long-term organising — safely** — sustain 12+ months; prevent burnout and fear; keep people alive and together (Section 9).
4. **Documentation first** — build the evidence (including who lives there and the water systems), then use the hearing and litigate on it.
5. **Coalition building** — 5-10 diverse groups; respect ethnic communities' own authorities and guard against co-option.
6. **Use the tutela, prior consultation, and rights of nature** — the fast constitutional action, the consultation right, and the rights-of-nature jurisprudence are distinctively strong Colombian levers.
7. **Act fast with the tutela** — it is free and decided in days when a right is under imminent threat.
8. **Realistic expectations** — expect conditions/modifications/delay; a refusal or suspension is the bonus; expect royalty-driven backing and possible re-granting.
9. **Persistence and safety** — plan for 12-24 months, keep momentum, and protect organisers and whistleblowers — the danger here is the highest in the world.

Warning Signs — Act Early

Watch for these and respond fast: attendance declining around months 4-5 (burnout or fear); coalition members leaving or being co-opted; no media coverage for 2-3 months; the case stalling or a licence re-granted after a suspension; fundraising below half your target by month 6; a core organiser leaving without a successor; **threats, stigmatisation, or intimidation** against organisers (treat as a life-safety emergency — see Section 9); or someone new pushing unlawful or reckless tactics. Each has a fix earlier in this guide — catch it early and the campaign holds.

FINAL ASSESSMENT: OUTCOMES & WHEN TO REASSESS

Real Outcomes: What Winning Looks Like

- **Licence refused / project shelved** (rarer): usually needs overwhelming opposition + a strong consultation or EIA case + heavy media + lower tilt. Cajamarca (the mine suspended after the vote) shows it happens — and also shows a win can be re-fought.
- **Licence modified** (most common victory): strict conditions, genuine compensation and relocation, buffers, independent monitoring, redesign — often via the authority or a court.
- **Delay / attrition:** suspended for years while the litigation runs; costs mount and financiers lose confidence; the developer sometimes walks away.
- **Defeat:** the project proceeds (sometimes after a re-granted licence or a cured defect). Focus then shifts to enforcing conditions and remediation, monitoring compliance, and the next opening.

Decision Point: Continue, Modify, or Reassess

Continue if the legal grounds are live, the consultation and information record is strong, opposition is holding or growing, media is at least monthly, the coalition is stable, and organisers are safe.

Modify if attendance is falling, coverage has dropped for 2+ months, coalition members are leaving, the legal position has weakened, the security risk has risen, or you discover the system is more tilted than assessed.

Reassess if, after ~12 months (and perhaps a tutela and a collective action) licence and legal options are exhausted, the decision looks settled despite real effort, the community is exhausted, resources are gone — or if the danger to organisers has become unacceptable. Ask: has opposition already won partial victory (conditions, compensation, delay)? Would more effort win more, or just prolong the fight? Should energy shift to enforcing conditions, to the next project, or to changing the policy? **And always: is it safe to continue?**

The Bottom Line

Opposition work can stop or significantly modify destructive projects in Colombia — even where royalties, investment, and "strategic interest" politics point toward approval. Opposition creates multiple, compounding forms of pressure: on the record, politically, in the press, and in the courts. Where the system is tilted, an outright stop is less likely, but opposition still delivers suspensions, conditions, compensation, delay, and durable power.

And Colombia offers genuine equalisers found in few places: the fast, free **acción de tutela**, which protects a right under imminent threat in days; the **collective action** for the environment; the right of ethnic peoples to **prior consultation**; the world-leading **rights-of-nature** jurisprudence — the **Atrato**, the **Amazon**, and more — and the **biocultural rights** that tie a people's survival to their river or forest; and the free **right to petition** that prises the file open. When a project truly cannot lawfully proceed, a court can suspend or annul it — remembering that such a win must then be defended.

Know your situation. Assess how tilted the system is, honestly, and get current advice as the rules change. Watch for genuine corruption and refer it to the oversight bodies. **Above all, keep people safe — Colombia is the most dangerous country in the world for this work, and no project is worth a life.** Choose your strategy accordingly. Then organise — with eyes open to both the possibilities and the barriers, and together.

RESOURCES (verified)

Legal help:

- **Tierra Digna (Centro de Estudios para la Justicia Social)** — public-interest environmental and ethnic-rights law; litigated the Atrato River case.
- **Dejusticia** — *dejusticia.org* — public-interest law and research.
- **CENSAT Agua Viva (Friends of the Earth Colombia)** and regional environmental committees; university legal clinics.

The decision and the challenge:

- The **environmental licence** and **EIA** via **ANLA** (*anla.gov.co*) or the regional **CAR**; the mining concession via the **ANM**.
- The **acción de tutela** and the **collective action** before the courts; the **Constitutional Court** (rights of nature) and the **Council of State (Consejo de Estado)** (administrative challenges).

Transparency: the **right to petition (derecho de petición, Article 23)** and the **Transparency and Access to Information Law (Law 1712 of 2014)** — request records from any authority; you must receive a timely response.

Integrity and anti-corruption: the **Fiscalía General de la Nación** (*fiscalia.gov.co*) (criminal); the **Procuraduría General de la Nación** (*procuraduria.gov.co*) (disciplinary); the **Contraloría General de la República** (*contraloria.gov.co*) (fiscal).

Protection and safety: the **Ombudsman (Defensoría del Pueblo)** (*defensoria.gov.co*); the **National Protection Unit (Unidad Nacional de Protección, UNP)**; defender organisations such as **Somos Defensores**; and the protections of the **Escazú Agreement**. Report threats and seek protection early.

Environmental and accountability media: *El Espectador*; *El Tiempo*; *Semana*; *La Silla Vacía*; *Cuestión Pública*; *Rutas del Conflicto*; *Vorágine*; and **Mongabay Latam**; plus local and community media.

Nothing here is legal advice. Colombian environmental, licensing, and participation law is technical and evolving (including the limits on popular consultations), and — most importantly — organising in Colombia can be dangerous. Get advice from a Colombian environmental lawyer or a public-interest organisation, and seek protection support, before relying on this.

GLOSSARY

Terms are listed alphabetically. Words shown in **bold** in the guide are the ones defined here.

- **Acción de cumplimiento:** a constitutional action to compel an authority to apply a law or comply with an existing ruling.
- **Acción de nulidad:** an action before the administrative courts (up to the Council of State) to annul an unlawful administrative decision, such as a licence.
- **Acción de tutela (tutela):** a fast, free constitutional action, filed before any judge, to protect fundamental rights; decided in about ten days; the vehicle for Colombia's rights-of-nature rulings.
- **Acción popular (collective action):** an action under Law 472 of 1998 to protect collective rights such as the environment.
- **ANLA (Autoridad Nacional de Licencias Ambientales):** the national authority that evaluates and grants the environmental licence for large or strategic projects.
- **Audiencia pública ambiental (public environmental hearing):** a hearing, which communities can request, to put concerns and evidence on the record during licensing.
- **Biocultural rights:** the rights, recognised by the courts, arising from the intrinsic relationship between nature and the culture of the ethnic communities who depend on it.
- **Cabildo abierto:** a formal open town meeting where the community addresses its authorities.
- **Cabildo / consejo comunitario:** the Indigenous council / Afro-Colombian community council whose authorities carry legal weight and hold the consultation right.
- **CAR (Corporación Autónoma Regional):** a regional environmental authority that grants licences and permits and manages regional resources.
- **Consulta popular (popular consultation):** a binding public vote; used at Cajamarca, but limited by the Constitutional Court so it cannot, on its own, ban mining.
- **Consulta previa (prior consultation):** the free, prior, and informed consultation of an ethnic community required before a project affecting it, under the Constitution and ILO Convention 169.
- **Derecho de petición (right to petition):** the constitutional right (Article 23) to ask any authority for information or action and receive a timely response — a fast, free transparency tool.
- **Ecological Constitution:** the name given to the 1991 Constitution's many environmental provisions.
- **EIA (Estudio de Impacto Ambiental):** the environmental impact study a significant project must prepare, prepared by the developer's consultants.
- **Healthy environment (Article 79):** the constitutional right to a healthy environment and to participate in decisions affecting it.
- **Junta de Acción Comunal:** the community action board — a grassroots neighbourhood organisation with legal standing.
- **Licencia ambiental (environmental licence):** the permit a project needs, granted by ANLA or a CAR on the basis of the EIA.
- **Páramo:** a high-altitude wetland ecosystem, vital for water, where mining is banned.
- **Precautionary principle:** the principle that a risk of serious or irreversible environmental harm justifies protective action even without full scientific certainty.
- **Regalías (royalties):** the payments to the nation and regions from mining and oil, which create a financial incentive to license

extraction.

- **Rights of nature:** the recognition by Colombian courts of ecosystems (the Atrato River, the Amazon, and others) as subjects of rights.
- **A system tilted toward approval:** the situation where the bodies deciding on a project lean toward approving it — because the nation depends on royalties, because the developer's own consultants write the study, or because licences are rarely refused — usually without anyone breaking the law.
- **Subsoil:** the underground resources, owned by the nation — the reason a municipality cannot, by itself, ban mining.